

The Claremont City Council held a meeting on Wednesday, June 14, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor Jim Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to accept the minutes of the May 20, 2023, City Council meeting.

Voice vote:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

A motion was made by Councilor Koloski and seconded by Councilor Stone to accept the minutes of the May 24, 2023, City Council meeting.

Voice vote:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O'Hearne - yes

Girard - yes

Motion carried 9-0

MAYOR'S NOTES

Mayor Girard invited TLC members up, and read the Proclamation for Rural Pride.

Last Saturday was the first celebration of the Second Saturdays on Pleasant St. The next one will be on July 8th.

CITY MANAGER'S REPORT

Manager Manale explained the Planning Office will be putting out to bid three properties for demolition which are 111, 119 Main Street and 150 Chestnut Street.

With increasing struggles for housing; Southwest Community Services have a number of services to help, contact Jim Doherty, outreach specialist for housing stabilization services at 603-477-6126.

The state upgrade for the boat launch will be going out to bid later this year, with the intention of working on the upgrades for the Spring and Summer of 2024.

The Band Stand is being fixed for cost by local contractor WAL Masonry.

The Community Center has sent out emails for their fee increases.

Councilor Limoges asked for an update on the smoke-stack, Manager Manale replied the grassy area needs to be stable enough for machinery before continuing.

APPOINTMENT TO BOARDS AND COMMITTEES

Tax Increment Finance District Advisory Board

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to re-appoint Robert Porter to Seat 5 of the Tax Increment Finance District Advisory Board – Downtown.

Voice vote:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

Airport Advisory Board

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to re-appoint Allyn Girard to Seat 1 of the Airport Advisory Board.

Voice vote:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

Conservation Commission

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to appoint Spencer Batchelder to Seat 3 of the Conservation Commission.

Voice vote:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes
O'Hearne - yes
Girard - yes
Motion carried 9-0

Claremont Development Authority

A motion was made by Councilor Batchelder and seconded by Assistant Mayor Matteau to appoint Justin Provost to Seat 5 of the Claremont Development Authority.

Voice vote:
Mooshian - yes
Contois - yes
Limoges - yes
Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes
O'Hearne - yes
Girard - yes
Motion carried 9-0

CITIZEN'S FORUM

Mayor Girard reminded all to speak on non-agenda items for up to five minutes, and to please state name and ward.

Lisa Richmond, Ward 3, read the following statement:

Good Governance requires transparency, accountability, rule of law, equity, inclusiveness, and consensus.

I have served as a board member for several organizations for more than 20 years. My role as a board member is the same as a city council member. I vote on budget, vote on major money matters, and set policy.

For transparency and accountability, every year I have to sign an annual

conflict of interest statement. I have to disclose if I am related to any other board members or employees of the organization. I even have to disclose if any member of my household is related to a board member or an employee of the organization.

In addition, I have to disclose if I or any member of my household has a 5% ownership interest in any company the organization might do business with. This is to ensure as a board member that I do not receive any financial benefit from my voting decision.

This council does not disclose or is not required to disclose this information. I as a tax payer and former employee have concerns over this lack of transparency and accountability because -

- There are sitting council members who are family members
- There are sitting council members whose business partner is a close family relation to another council member.
- There are sitting council members who vote on budgets in which they could benefit financially. What is most concerning is there is no way to determine what other business interest a councilor may have since there is NO disclosure. Public information available at the state only discloses the managing member of an LLC and other members are not disclosed.

Equity and inclusiveness is not only good governance but ensures representation of the stakeholders. This council has allowed its members to bully voters, volunteers, and employees. This has allowed because of freedom of speech. YET, there is a sitting council member who has tried to suppress my freedom of speech

Rule of law and consensus- according to the city's charter Article III and council rules - e a c h council member has one vote and no one person's vote has more power over another. According to the charter the mayor is ceremonial in nature and all other duties of the mayor is exercised by the city manager.

I was employed by the city for almost 17 years. The last 6 months of my employment with the city. I witnessed and experienced unprecedented intrusions into day-to-day operations by this council.

No one council member should impose their own will on day-to-day operation. This not only violates the charter it usurps the equal power of the other council members and these private requests are NOT transparent to the public.

It is very difficult for staff to serve nine different masters. As a tax payer and former employee, I have grave concerns about staff retention. Staff are over worked and are grossly underpaid. I know that staff are grossly underpaid since the city has paid for two salary surveys which has clearly stated this fact.

In addition, if the City Manager wants or needs mentorship, that role should not be filled by a member of this council. This is a conflict and usurps the equal power of the other council members and is NOT transparent to the tax payers.

Lastly, I had two credible sources report to me that council members are meeting in person outside of meetings and this violation of 91-A. I have personally witness council members having discussion on agenda items in the hallway and in the kitchen during break and this violation of 91-A. In April, I believe Councilor Kolowski brought this subject up during a meeting because a discussion and decision was made in the hallway during a meeting break.

I formally requesting this council to form a committee to address these issues and to include further 91-A training for its members.

Mike Tetu, Ward 1, asked the Council to apply for The Northern Borders 80-20 matching grant for needed additional parking for Arrowhead Park and to construct a building to house a retail store.

Hope Damon, District 8 house representative gave a report on the state budget, and noted it has not been signed by the Governor yet.

Rebecca Mackenzie, Ward 2, wanted to alert the community for a meeting tomorrow at Trinity Episcopal Church at 120 Broad Street. Acuity, the out of state company who wants to open a massive waste depot, has filed a lawsuit with the City to turn over a decision by the ZBA.

OLD BUSINESS

CSB Community Center-Recreation

Mayor Girard noted this Budget was moved from the May 20th, Council Meeting to this evening.

Director Mulholland and Director Lawrence explained the revised CSB Community Center Recreation Budget.

After council discussion it was agreed to change temporary/seasonal to the 22-23 Budget number.

By consensus the Council agrees to reduce from both membership fees and rental fees, along with the reduction from part time. Making revenues \$666,645.00 and expenditures are \$1,217,012.00.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Contois to tentatively approve the CSB Community Center Recreation Budget for \$ 1,217,012.00.

Roll call:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - no

Batchelder - no

O'Hearne - no

Girard - yes

Motion carried 6-3

Municipal Complex (Maintenance)

Human Resources Director, Jamie Young read letter from maintenance.

Mayor Girard stated he was not comfortable with adding a position if we keep cleaning services for \$80,000.00.

Director Mulholland suggested eliminating the cleaning portion from City Hall and only use them for the Police Department and Court.

Councilor Limoges stated he would like to see the cost savings of this proposal, Assistant Mayor Matteau agreed this could be a good compromise.

By consensus Council agreed to bring back the Municipal Complex Budget for the June 28th Council meeting.

Airport Budget

Chief Chamberlain stated his primary focus is the Fire Department, and noted the Airport will be behind, and shared concern his attention will eventually have to shift and this will take away from morale of the department.

Assistant Mayor Matteau agreed this should be taken off of the Fire Chief's plate, and suggested lowering the position to \$20,000.00 and then hiring in January

Councilor Batchelder shared concern for finding a part time position.

Councilor Koloski suggested waiting until after the FBO agreement was re-addressed.

Councilor Stone suggested moving the responsibility to planning office, and having them hire a consultant when needed.

Director Mulholand clarified taking \$21,530.00 off the total budget making the Airport Budget a total of \$189,980.00.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to tentatively approve the Airport Budget for \$187,980.00.

Roll call:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O'Hearne - yes

Girard - yes

Motion carried 9-0

General Fund Revenue

Director Mulholand noted the system has crashed and cannot get onto BS&A.

By Consensus Council Agreed to bring back the General Fund at the June 28th Council Meeting.

Water Fund Budget

Director Gleeson explained the entry error for industrial cost, and also explained the hydrant rentals, stating it is a quarterly charge, and suggested changing the name to fire protection instead of hydrant rentals in the future.

A motion was made by Councilor Koloski and seconded by Councilor Limoges to tentatively approve the Water Fund Budget for \$2,193,040.00.

Roll call:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O'Hearne - yes

Girard - yes
Motion carried 9-0

Sewer Fund Budget

By consensus the Council agreed to move the Sewer Fund Budget to the June 28th Council Meeting.

Roads and Streets

Director Mulholland and Director Gleeson explained two positions were not captured in BS&A that are now reflected in the pending side of the budget, and the increase for overtime wasn't entered properly.

A motion was made by Councilor Stone and seconded by Assistant Mayor Matteau to remove one position from DPW out of Streets and Roads.

Councilor Koloski was not in favor, and suggested the Union would be upset.

Roll call:
Mooshian - No
Contois - No
Limoges - Yes
Koloski - No
Matteau - yes
Stone - yes
Batchelder - yes
O'Hearne - yes
Girard - yes
Motion carried 6-3

By consensus the Council agreed to move the Streets and Roads Budget to the June 28th Council Meeting.
NEW BUSINESS

Resolution 2023-31 Acceptance of OHRV Funds – Public Hearing

RESOLUTION 2023-31

OHRV Enforcement Grant

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire has been awarded a NH Fish and Game Off Highway Recreational Vehicle (OHRV) Enforcement Grant in the amount of \$1,800.00 for OHRV enforcement patrols by the Claremont Police Department; and

WHEREAS the City would like to accept and expend the OHRV Enforcement grant funds for their intended purpose;

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept a grant in the amount of \$1,800.00 from the State of New Hampshire Fish and Game Department for the purpose of OHRV enforcement by the Claremont Police Department; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$1,800.00 for the Police Department (from off-setting grant revenue) for the purpose of providing additional OHRV enforcement patrols by the Claremont Police Department with no impact on the tax rate; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.
(2/3 Vote Required)

Dated this 14th day of June, 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Batchelder and seconded by Councilor O’Hearne to accept the 2023-31 Resolution.

Resolution 2023-31 was read into the record by Councilor Batchelder.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O’Hearne - yes

Girard - yes

Motion carried 9-0

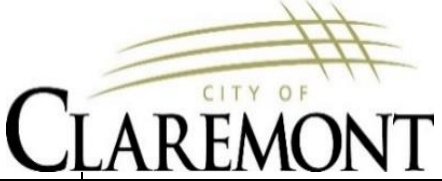
Budget

Encumbrance Budget Resolution 2023-32 - Public Hearing

Resolution 2023-32

**Adoption of the 2023 Encumbrance Budget into FY 2023-2024
City of Claremont**

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing duly noticed, that it hereby adopts the following for the 2023 encumbrances: *(Majority vote required)*

			
Dept #	Department - General Description	Amount	Detailed Description
415	Municipal Complex	\$ 50,000	Electrical repairs at city hall
416	Planning & Development	\$ 18,000	Part-time position
416	Planning & Development	\$ 20,000	Succession planning- Planner
416	Planning & Development	\$ 60,000	M&R for front of building
417	General Services	\$ 30,000	Consulting services-Finance
417	General Services	\$ 35,000	Re-Encumber network switches, routers, and city hall copier
417	General Services	\$ 10,000	Council laptops and bags
421	Police	\$ 10,000	M & R carpets
421	Police	\$ 20,000	Uniform & equipment for special unit

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421	Police	\$ 50,000	New computer server
421	Police	\$ 5,000	Re-encumber for additional advertising of open positions at the CPD
421	Police	\$ 40,000	Recruiting Bonus: would like to continue carrying over funds in hopes of attracting qualified candidates.
422	Fire	\$ 25,000	Transfer to Traffic Signals Upgrade & Maintenance Non-Cap Reserve Fund
422	Fire	\$ 100,000	Transfer to Fire Capital Reserve
432	Welfare	\$ 32,000	Rents held for inspection process
434	Sanitation	\$ 50,000	Shed Project
441	Streets & Roads	\$ 25,000	Crushing of asphalt piles
441	Streets & Roads	\$ 10,000	ADA compliance-Sidewalks
441	Streets & Roads	\$ 100,000	Paving Project
450	Library	\$ 15,000	Transfer to Fiske Free Library Non-Capital Reserve
450	Library	\$ 5,000	Upgrade computers

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450	Library	\$ 5,000	150 Year Celebration Event
471	Cemetery	\$ 20,000	Tree removal
471	Cemetery	\$ 3,000	Re-encumber-Mower replacement
471	Cemetery	\$ 3,000	Cemetery- Mower replacement
481	Parks and Recreation	\$ 10,000	Moody Park- M & R
481	Parks and Recreation	\$ 30,000	Moody Park- Playground
482	CSB Community Center	\$ 20,000	Referral and recruiting bonuses
	Total Request to Encumber into FY 2024	\$ 801,000	To use the General Fund monies Already raised on the tax rate for projects, services or equipment that were not able to be completed in the current Fiscal year.

Dated this 14th day of June 2023, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Stone and seconded by Councilor Limoges to remove item 416 Planning and Development Part time position in the amount of \$18,000.00.

Roll call:

Mooshian - no

Contois -yes

Limoges - yes
Koloski - no
Matteau - no
Stone - yes
Batchelder - no
O’Hearne - yes
Girard - yes
Motion carried 5-4

A motion was made by Councilor Batchelder and seconded by Councilor Stone to accept the 2023-32 Resolution with removal of item 416, and 482 out of the Encumbrance Budget, along with changing item 417 from Council Laptops and bags to Council Technology Upgrades for a total of \$763,000.00.

Councilor Batchelder read resolution 2023-32 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:
Mooshian - yes
Contois - yes
Limoges - yes
Koloski - yes
Matteau - yes
Stone - yes
Batchelder - yes
O’Hearne - yes
Girard - yes
Motion carried 9-0

Capital Budget

Manager Manale and Director Gleeson explained the bond paving plan.

Assistant Mayor Matteau noted she didn’t like the idea for bonding last year. However, roads in the community are one of the biggest complaints, and that there really is no impact on tax rate. Assistant Mayor Matteau suggested needing to be aggressive when it comes to fixing things.

Mayor Girard expressed concern for the roads going back to the way they were before the bond is paid off.

Councilor Stone suggested increasing the tax rate instead of bonding,

Assistant Mayor Matteau noted there was two ways fix the roads: either borrow money or increase taxes.

Manager Manale stated the bond rate is good, and if the Council wants to address the issue, they should do it now.

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to table the Capital Budget until the June 28th Council Meeting.

Roll call:

Mooshian - no

Contois -no

Limoges - yes

Koloski - no

Matteau - no

Stone - yes

Batchelder - no

O’Hearne - yes

Girard - no

Motion Failed 6-3

A motion was made by Assistant Mayor Matteau and seconded by Councilor Contois to tentatively approve the Capital Budget for \$2,842,000.00.

Roll call:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - no

Batchelder - yes

O’Hearne - no

Girard - no

Motion carried 6-3

COMMITTEE REPORTS

None.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski asked for an Arts Commission update.

Councilor Stone suggested removing the practice of having the Police Department deliver Council Items.

Councilor Contois followed up with the statements the former Finance Director Richmond read, and suggested someone should reach out to her, and stated he doesn't want the public to think the Council is not reacting to public comment.

Councilor Koloski suggested installing city owned billboards, and suggested a partnership with Claremont Savings Bank to entice citizens to shop local and collect points.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:52 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor O'Hearne to adjourn.

Voice vote:

Mooshian - yes

Contois - yes

Limoges - yes

Koloski - yes

Matteau - yes

Stone - yes

Batchelder - yes

O'Hearne - yes

Girard - yes

Motion carried 9-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council